

26STCV00634 26STCV00634

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV00634 Hearing Date: June 24, 2026 Dept: 732

Luckett Palmer Jr. v. Carrie Y. Palmer, et al.

Wednesday, June 24, 2026

CASE NUMBER: 26STCV00634

OPPOSED

Plaintiff Luckett

Palmer Jr.'s Motion to Compel Further Responses to Requests for Admission,

Requests for Production, and Special Interrogatories from Defendant Carrie Y.

Palmer

Facts:

This is an action for partition. The Complaint alleges as follows. Plaintiff

Luckett Palmer Jr. ("Plaintiff") and Defendant Carrie Palmer ("Defendant") are

joint tenants with 50% interests in property on Hobart Boulevard in Los

Angeles. (Complaint ¶¶ 1–3.) Plaintiff seeks partition by sale of the property.

(Complaint ¶ 122.)

Procedural History: Plaintiff

filed the Complaint on January 8, 2026, alleging one cause of action for

partition.

This

court on April 14, 2026, granted in part Defendant’s motion for contribution of

mortgage payments.

On

April 29, 2026, this court denied Defendant’s motion for an accounting.

Plaintiff

filed the present motion to compel further responses on May 12, 2026.

Defendant

filed an opposition on June 8, 2026.

Analysis

I.

MOTIONS

TO COMPEL FURTHER

“Any party may obtain discovery . . . by propounding to any other party to

the action written interrogatories to be answered under oath.” (Code Civ. Proc., § 2030.010(a).) If a

propounding party is not satisfied with the response served by a responding

party, the former may move the court to compel further interrogatory

responses. (Code Civ. Proc., § 2030.300;

Sinaiko Healthcare Consulting, Inc. v.

Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403.) The propounding party must demonstrate that

the responses were incomplete, inadequate or evasive, or that the responding

party asserted objections that are either without merit or too general. (Code Civ. Proc., § 2030.300(a)(1)–(3); Sinaiko Healthcare Consulting, Inc., supra, 148 Cal.App.4th at 403.)

“A party may demand

that any other party produce . . . a document that is in the possession,

custody, or control of the party on whom the demand is made.” (Code Civ. Proc.,

§ 2031.010(b).) The demanding party may move for an order compelling further

response to the demand if the demanding party deems that (1) a statement of

compliance with the demand is incomplete, (2) a representation of inability to

comply is inadequate, incomplete, or evasive, or (3) an objection in the

response is without merit or too general. (Code Civ. Proc., § 2031.310(a).) “The

motion shall set forth specific facts showing good cause justifying the

discovery sought by the demand,” and “[t]he motion shall be accompanied by a

meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §

2031.310(b).)

A motion to compel

a further response to an inspection demand must set forth specific facts

showing “good cause” justifying the discovery sought by the inspection demand.

(Code Civ. Proc., § 2031.310(b)(1); Kirkland

v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Unless there is a

legitimate privilege issue or claim of attorney work product, that burden is

met simply by a fact-specific showing of relevance. (TBG Ins. Services Corp. v. Superior Court (2002) 96 Cal.App.4th

443, 444.) Once the moving party demonstrates good cause for the discovery, the

burden is on the responding party to justify any objection or failure to fully

respond to the inspection demand. (Coy v Superior Court (1962) 58 Cal.2d

210, 220.)

Finally, a motion to compel

further responses to requests for admissions may be made on the grounds that an

answer is incomplete or evasive, or an objection is without merit. (Code Civ.

Proc. § 2033.290, subd. (a)(1)–(2).)

Plaintiff Luckett Palmer Jr.

(“Plaintiff”) seeks further responses to Requests for Admission No. 2–4, and 6,

Request for Production No. 4, and Special Interrogatory No. 7 and 8 from

Defendant Carrie Y. Palmer (“Defendant”).

The motion is defective. It

does not submit into evidence the discovery responses at issue, relying

entirely on a separate statement of the specific requests for which Plaintiff seeks responses. This would perhaps be no defect if the separate statement accurately and completely set forth the requests and responses at issue. But review of the responses submitted by Defendant as exhibits to her opposition reveals that the responses set forth in Plaintiff's separate statement do not accurately reflect the responses themselves, but rather summaries of the responses or substantially truncated versions of what Defendant actually provided. (C. Palmer Decl. Exh. A.) This was improper.

"he separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response." (CRC Rule 3.1345, subd. (c).) The motion here relies entirely upon a separate statement which is not full and complete in its presentation of the requests and responses.

The motion also does not present an adequate attempt at informal efforts to meet and confer. A

motion to compel further responses to requests for production must include a meet and confer declaration, which must "state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).) [1] A party's meet and confer obligation

“requires a reasonable and good faith attempt at informal resolution before bringing a motion to compel. This requirement entails more than bickering with the deponent's counsel at a deposition. Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.”

(Townsend v. Superior Court (1998) 61 Cal.App.4th 1431.)

The meet and confer efforts that preceded the present motion consisted of Plaintiff's counsel sending a letter on April 27, 2026, identified as an exhibit but not attached in any document filed with the court. (Macbeth Decl. ¶ 5.) Plaintiff's counsel merely states that, in response to this letter, Defendant did not provide supplemental responses or cure the deficiencies identified. (Macbeth Decl. ¶ 6.) This was inadequate prelude to the present motion.

The motion is DENIED. Defendant seeks sanctions in the amount of \$2,700.00. (Opposition at p. 19.) Defendant cannot obtain sanctions in the form of reimbursement for attorney fees because Defendant is self-represented. (See Honchariw v. PMF CA REIT, LLC (2025) 117 Cal.App.5th 827, 837.) Thus no sanctions are awarded.

Superior Court of California

County of Los Angeles

Department 61

Lockett

palmer.,

Plaintiff

v.

CARRIE PALMER, et al.,

Defendants.

Case No.:

26STCV00634

Hearing Date: June 24, 2026

[TENTATIVE] RULING RE:

Plaintiff

Lockett Palmer Jr.'s Motion to Compel Further Responses to Requests for

Admission, Requests for Production, and Special Interrogatories from

Defendant Carrie Y. Palmer

Plaintiff

Lockett Palmer Jr.'s Motion to Compel Further Responses to Requests for

Admission, Requests for Production, and Special Interrogatories from Defendant

Carrie Y. Palmer

is

DENIED. No sanctions are awarded.

Plaintiff to give notice.

Dated: June 24, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court

[1]

The provision requiring informal conference occur "in person, by telephone, or
by videoconference,," became effective on January 1, 2026.